FUTURE TRENDS AI

LAW & GOVERNANCE



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BEWARE THE **SILICON VALLEY EFFECT**

BIG TECH PRESENTS ITS AI PRODUCTS AS INEVITABLE, AND DISMISSES REGULATION AS ANTI-INNOVATION AND ANTI-FREE TRADE, WITH THE RESULT THAT INDIA GETS GLOBAL REGULATORY FRAMEWORKS UNSUITED TO ITS PEOPLE

India's approach to AI governance should be steered by a clear-eyed understanding of its capacities and vulnerabilities. The new year presents our leaders with the opportunity to reflect on what this means. They can move past trite ideas forcefully presented to them by industry to claim a leadership role in global AI regulatory discourse. This would be consistent with India's rich history of contributing our own ideas as global norms are being framed, starting from Hansa Mehta's historic intervention to ensure that the Universal Declaration of Human Rights is about the rights of 'human beings' rather than 'men'. Although India's proposal for a global internet governance body at the United Nations level did not carry enough political momentum, it was a visionary, prescient idea that generated essential debates and continues to do so.

I attended a major technology leadership summit in Delhi after years of being sequestered in the United States, and was disappointed by the erasure of critical perspectives on AI governance. Political and industry leaders displayed the expected enthusiasm for AI's growth in India, but there was little discussion of how regulation can protect more than innovation and expansion. This conforms to a disturbing global trend (which I call the Silicon Valley Effect), shaped by the AI industry, which favours a deregulatory agenda for AI. It does so by presenting Big Tech's AI products as inevitable, eliding other forms that technological progress can take, and by treating regulation as anti-innovation and anti-free trade. This is not the first time that India has been presented with global regulatory frameworks that do not work for its people.

In governing AI, India needs to consider its role not just as a site of innovation and a market for AI products, but also as providers of skilled and unskilled labour to the world. This includes both generating and processing the data that fuels AI, and hosting the data centres and other AI infrastructure (which affect the environment) for global AI companies. Our political leaders need to make governance choices that will protect the majority of Indians as the global AI industry turns to India for its needs. We may produce BigTech CEOs, but India is also home to the labourers, blue and white collar, who risk their lives, livelihoods and mental health for the AI industry.

Indians who have never used generative AI are already deeply affected by it. Many have handled e-waste for extremely low wages. Others are affected by the toxic chemicals and heavy metals that it releases into the environment. The